

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Arthur Albano	Team: Team # 3	CCRB Case #: 201402142	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 02/21/2014 10:15 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/21/2015	Precinct: 81		
Date/Time CV Reported Tue, 03/04/2014 2:59 PM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Tue, 03/04/2014 2:59 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jonathan Martinez	10299	953059	PBBN
2. Officers			Unknown

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Carlos Ponce	19531	953263	PBBN
2. SGT Joseph Edmund	01004	920246	081 PCT
3. POM Raymond Hernandez	01074	953965	PBBN
4. SGT Taejin Lim	02659	928647	081 PCT
5. POM Joel Rodriguez	16835	955399	PBBN

Officer(s)	Allegation	Investigator Recommendation
A . POM Jonathan Martinez	Discourtesy: PO Jonathan Martinez spoke rudely to § 87(2)(b)	A . Substantiated
B . POM Jonathan Martinez	Off. Language: PO Jonathan Martinez made remarks to § 87(2)(b) based upon race.	B . Substantiated
C . POM Jonathan Martinez	Off. Language: PO Jonathan Martinez made offensive remarks to § 87(2)(b) of a sexual nature.	C . Substantiated
D . POM Jonathan Martinez	Abuse: PO Jonathan Martinez arrested § 87(2)(b)	D . Unsubstantiated
E . POM Jonathan Martinez	Force: PO Jonathan Martinez used physical force against § 87(2)(b)	E . Unsubstantiated
F . Officers	Force: Officers used physical force against § 87(2)(b)	F . Exonerated

Case Summary

On February 21, 2014, at approximately 10:30 p.m., PO Martinez PO Hernandez, and an additional unidentified officer were conducting a vertical patrol at § 87(2)(b). When the officers reached the third floor, they approached three minors, two of whom were subsequently arrested for smoking marijuana in the hallway. While the two individuals were being apprehended § 87(2)(b) exited from his apartment on the third floor and approached the officers and asked them why they were harassing the two minors. At this point PO Martinez allegedly called § 87(2)(b) a “bitch ass nigger” and told § 87(2)(b) “suck my dick.” (Allegations A, B, and C). Due to this heightened interaction, § 87(2)(b) followed PO Martinez down a flight of stairs to the front of the building. There, PO Martinez continued to use profanity when speaking with § 87(2)(b) (within Allegation A). PO Martinez allegedly grabbed § 87(2)(b) by the arms in an attempt to place him in handcuffs (Allegation D and E). While attempting to place § 87(2)(b) in handcuffs, § 87(2)(b) grabbed onto a side railing, and PO Martinez allegedly punched § 87(2)(b) in the midsection and head (Allegation D). Additional officers allegedly collectively used physical force in placing § 87(2)(b) in handcuffs (Allegation F). During this collective effort, PO Martinez allegedly punched § 87(2)(b) in the face, under his right eye (Within Allegation E).

Mediation, Civil, and Criminal Histories

- Due to the fact that § 87(2)(b) was pursuing a lawsuit in regards to this incident, the case was unsuitable for mediation.
- § 87(2)(b) filed a Notice of Claim against the City of New York alleging emotional and physical injuries and loss of liberty and seeking \$1,000,000.00 as redress (encl. 5A-E). A 50-H hearing was conducted on § 87(2)(b), a transcript of this hearing is included in the case file (encl. 5G-BF).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed or involving § 87(2)(b) (encl. 2A).
- PO Martinez has been a member of the service for two years. This is the first CCRB complaint filed against him (encl. 2B).

NYPD Documents

- The 81st Precinct Impact Roll Call lists 20 officers as working on the night of the incident, all of whom were assigned to different foot posts (encl. 15A-C).
- Event Chronology D14022125308 (encl. 16D-H) for this incident indicates that Post 21 (PO Martinez) called for additional officers at the location, and numerous foot posts and sectors arrived to the location.

Finding and Recommendations

Allegations Not Pleaded

Although § 87(2)(b) alleged that officers used profanity against § 87(2)(b) and § 87(2)(b) when phone statements were obtained from each of them, neither alleged that any profanity was used towards them, only § 87(2)(b) § 87(2)(b) denied that PO Martinez used profanity towards him and § 87(2)(b) § 87(2)(g)
[REDACTED]

Explanation of Subject Officer Identification

PO Martinez admitted to his interaction with § 87(2)(b) § 87(2)(g) § 87(2)(b) § 87(2)(b) alleged that it was a collective effort by additional officers to place him under arrest. § 87(2)(g)

Recommendations

Allegation A- PO Jonathan Martinez spoke rudely to § 87(2)(b)

Allegation B- PO Jonathan Martinez made remarks to § 87(2)(b) **based upon race.**

Allegation C- PO Jonathan Martinez made remarks to § 87(2)(b) **of a sexual nature.**

It is undisputed that PO Martinez and § 87(2)(b) had some interaction in the third floor hallway of § 87(2)(b) causing § 87(2)(b) to follow PO Martinez and two additional officers to the front of § 87(2)(b) § 87(2)(g). According to § 87(2)(b) upon him questioning the reasons why they were arresting § 87(2)(b) and § 87(2)(b) PO Martinez responded, “I don’t have to explain shit to you, mother fucker, get the fuck out of my face.” § 87(2)(b) replied, “I’m his uncle” and PO Martinez responded, “I don’t have to explain shit to you. Get the fuck out of my face.” During § 87(2)(b) CCRB statement, he stated that he responded by pointing at PO Martinez’s face from less than a foot away from him and saying, “What the fuck is wrong with your mouth?” PO Martinez responded, “Suck my dick mother fucker, bitch ass nigger.” PO Martinez then started walking down the stairwell yelling to PO Martinez, “Tell your mother to suck a dick.” Once downstairs, PO Martinez stated, “What the fuck do you want to do?” § 87(2)(b) § 87(2)(b) responded, “What the fuck do you want to do, bitch? Why don’t you take off your badge and handcuffs and we can fight like a man? You violated my rights, you invited me to your private parts, you called me a nigger, I’m not a nigger, I’m not a faggot.” PO Martinez responded, “Fuck you, bitch ass mother fucker.” § 87(2)(b) then originally stated that PO Martinez swung towards § 87(2)(b) face. However, upon further questioning, § 87(2)(b) stated that PO Martinez grabbed § 87(2)(b) by his right arm and spun him around to handcuff him and stated, “You’re going to fucking jail.” As § 87(2)(b) spun around, he grabbed on to a nearby railing, to prevent himself from falling down. PO Martinez stated to § 87(2)(b) to “get the fuck on the floor” (encl. 4B-E).

§ 87(2)(a) Gen.Mun. §50-H(3)

§ 87(2)(b) (encl. 5AC). § 87(2)(b) CCRB interview was conducted on March 18, 2014, which was a little less than a month away from the incident date, while § 87(2)(b) 50-H hearing was conducted on § 87(2)(b), more than five months from the incident date.

§ 87(2)(g)

§ 87(2)(b) attorney was also not present for his CCRB interview, and although informed that his statement was subject to subpoena, § 87(2)(b) was told that the investigation was strictly disciplinary in nature. § 87(2)(a) Gen.Mun. §50-H(3), § 87(2)(g)

§ 87(2)(b) was one of the two minors being placed under arrest as § 87(2)(b) approached. According to § 87(2)(b) who provided a phone statement on June 10, 2014, PO Martinez told § 87(2)(b) “suck my dick,” and also called § 87(2)(b) a “nigger” multiple times throughout the incident. § 87(2)(b) and PO Martinez also argued on the stairs, PO Martinez made statements about § 87(2)(b) mother and continued to tell him, “suck my dick,” and call him a “nigger.” Once they were outside, § 87(2)(b) stated that § 87(2)(b) and PO Martinez got in each other’s faces, both saying, “hit me” to one another. § 87(2)(b) did not allege that any additional profanity or offensive remarks were made to § 87(2)(b) (encl. 7A).

§ 87(2)(b) the other arrestee provided a phone statement on April 11, 2014 (encl. 7B-C). According to § 87(2)(b) PO Martinez did not use any profanity, or make any offensive racial or sexual remarks during their initial interaction on the third floor. However, § 87(2)(b) followed PO Martinez down the stairs, yelling at him, while he § 87(2)(b) and PO Hernandez took the elevator. Once he exited the building § 87(2)(b) saw PO Martinez, and § 87(2)(b) standing a foot away from one another, yelling in each other’s faces. It was at this point, § 87(2)(b) alleges that PO Martinez stated, “Get out of my face nigger,” and “suck my dick”

According to PO Martinez (encl. 8A-I), although § 87(2)(b) was yelling at the officers arresting § 87(2)(b) and § 87(2)(b) he did not respond to § 87(2)(b) with any type of profanity, racial remarks, or sexual based remarks. PO Martinez could not recall if § 87(2)(b) used any profanity in speaking to him, only that he appeared agitated. PO Hernandez stated that § 87(2)(b) did in fact use profanity in speaking to PO Martinez, but he could not recall the specific statements § 87(2)(b) made, other than § 87(2)(b) stating to PO Martinez, “Why don’t you go arrest people in your neighborhood, you Puerto Rican” (encl. 10A-B). PO Hernandez however denied that PO Martinez used profanity, or made any racial or sexual based remarks to § 87(2)(b). PO Martinez did not recall if he took the stairs to the front of § 87(2)(b) and did not recall § 87(2)(b) following behind and cursing at him. PO Martinez does remember that once outside, § 87(2)(b) continued to prevent officers from placing their arrestees in the van, by standing in their path to the van and PO Martinez warned § 87(2)(b) several times that he would be arrested for obstructing governmental administration. PO Martinez also stated that § 87(2)(b) stood one foot away from him and began yelling, though PO Martinez could not recall what § 87(2)(b) was saying. All officers interviewed, denied that PO Martinez, or any officer said to § 87(2)(b) “You’re going to fucking jail,” or “get the fuck on the floor.”

§ 87(2)(b) provided a video of the incident to the investigation but it does not capture any profanity or offensive remarks made by any officers. However, as § 87(2)(b) is being escorted to a marked van, after he has been handcuffed, § 87(2)(b) can be heard yelling multiple times from the 1:17 mark to the 1:44 mark, “Why you call me a nigger for?” and “He called me a nigger,” though it is not clear solely by the video, who he is directing these comments to.

PO Martinez’s statement paints the interaction between him and § 87(2)(b) to be much less confrontational and discourteous, at least in regards to § 87(2)(b) conduct, than all other testimony. Although PO Hernandez stated that PO Martinez did not call § 87(2)(b) a “nigger” he did state that the topic of race was brought up by § 87(2)(b) when he stated, “Go arrest people in your own neighborhood, you Puerto Rican,” which was a statement omitted by PO Martinez. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Patrol Guide Procedure 203-10 prohibits officers from making discourteous or disrespectful remarks regarding another person's race. (encl. 1C-E)

"Even when presented with unexpected or volatile situations and with individuals who are openly hostile, defiant or provocative in manner, officers are required to maintain a certain decorum and professionalism in their conduct." Police Department v. Teeter, OATH Index No. 590/01 (May 21, 2001) (encl. 1F-AE)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, and C** be closed as *substantiated*.

Allegation D- Abuse of Authority- PO Jonathan Martinez arrested § 87(2)(b)

It is undisputed that § 87(2)(b) was arrested for resisting arrest, obstructing governmental administration, and disorderly conduct. It is undisputed that this interaction was initiated by § 87(2)(b) questioning why § 87(2)(b) and § 87(2)(b) were being arrested. It is undisputed that § 87(2)(b) followed PO Martinez to the front of § 87(2)(b) and PO Martinez and § 87(2)(b) were yelling at each other. The basis for obstructing governmental administration and disorderly conduct subsection one (violent/threatening behavior) is in dispute. According to § 87(2)(b) he was simply exercising his first amendment rights by questioning the officers' actions in arresting § 87(2)(b) and § 87(2)(b) but he did not interfere in the arrests.

By § 87(2)(b) statement, the escalation of this incident was precipitated solely on PO Martinez's conduct. According to PO Martinez and PO Hernandez, § 87(2)(b) physically stood in front of the elevator to prevent officers from going down the stairs, and physically stood in front of the officers in front of the building while they were escorting prisoners to the van. PO Martinez did not state that § 87(2)(b) threatened him at any point. However, § 87(2)(b) stated that he did say to § 87(2)(b) "Why don't you take off your badge and handcuffs and we can fight like men?"

New York State Penal Law § 195.05 states that a person is guilty of obstructing governmental administration when he intentionally obstructs, impairs or perverts the administration of law or other governmental function, by means of intimidation, physical force or interference, or by means of any independently unlawful act. (encl. 1AF)

§240.20(1) A person is guilty of disorderly conduct subsection one, when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof he engages in fighting or in violent, tumultuous or threatening behavior. (encl. 1AG)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as *unsubstantiated*.

Allegation E- PO Jonathan Martinez used physical force against § 87(2)(b)

Allegation F- Officers used physical force against § 87(2)(b)

It is undisputed that PO Martinez as well as other officers used physical force in order to place § 87(2)(b) under arrest, and PO Martinez initiated the force by grabbing § 87(2)(b) arm in an attempt to place him under arrest. It is also undisputed that in the process of PO Martinez's initial struggle, § 87(2)(b) grabbed hold of a nearby railing as PO Martinez, and soon after, up to four additional officers assisted in handcuffing § 87(2)(b) § 87(2)(g)

According to § 87(2)(b) while he was holding onto the railing, PO Martinez punched him in the mid-section and the back of the head, when the other officers joined, they also punched § 87(2)(b) on the back of the head and mid-section, and kicked § 87(2)(b) in the legs in order to get him down to the ground. § 87(2)(a) Gen.Mun. §50-H(3)

§ 87(2)(b) stated that he didn't want to go to the ground because he feared that if he did, officers would start to kick and stomp on him. All officers interviewed, including Sgt. Lim, PO Hernandez and PO Rodriguez, identified by the video to be the officers that assisted in apprehending § 87(2)(b) denied themselves or any officers punching or kicking § 87(2)(b)

Force used to place § 87(2)(b) in handcuffs begins at the 0:19 mark, and extends to the 1:21 mark. At 0:23 second mark, § 87(2)(b) is surrounded by four officers, while he is facing a guard rail, and apparently holding onto it. The officer directly to the left of § 87(2)(b) face (second uniformed officer from the left in the frame) was determined to be PO Martinez. At this point (this requires a slowing down of the speed of the video) PO Martinez is seen grabbing § 87(2)(b) near the back of his neck with his right arm seemingly pushing § 87(2)(b) head down, and motions with his left hand and arm in a way that is consistent with an uppercut punch to the front of § 87(2)(b) person. Due to the fact that the video depicts § 87(2)(b) face and body away from the camera, the viewer cannot definitively tell where on § 87(2)(b) person PO Martinez's punch lands.

§ 87(2)(b) did not go to the hospital in regards to this incident, and his arrest photograph (encl. 6A) does not show any visible injuries to § 87(2)(b) face.

Patrol Guide Procedure 203-11 states that officers are required to use the minimum necessary force to overcome a resisting subject. (encl. 1A-B)

New York State Penal Law § 205.30 states that a person is guilty of resisting arrest when he intentionally prevents or attempts to prevent a police officer from effecting an authorized arrest of himself or another person. (encl. 1AH)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) describes that officers punched him in the mid-section, and kicked at his legs in order to bring him down to the ground. § 87(2)(g)

§ 87(2)(b) The video did not display any officers punching § 87(2)(b) to the back of the head, but rather several officers grabbing at the back of his head, while pulling him away from the railing. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **unsubstantiated** and **Allegation F** be closed as **exonerated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date